

determine ; and of that number one may be appointed as His Majesty's Chief Inspector of Constabulary for England and Wales.

(2) So much of the said section fifteen as requires a report upon the matters therein mentioned to be made by each of the inspectors appointed thereunder shall cease to have effect, and such report upon those matters as a Secretary of State may direct shall be made to him annually, and copies thereof shall be laid before Parliament.

Amendment of
20 & 21 Vict.
c. 72, s. 65.

2.—(1) The number of inspectors of constabulary that may be appointed by His Majesty under section sixty-five of the Police (Scotland) Act, 1857, shall be such as a Secretary of State may, with the consent of the Treasury, from time to time determine ; and of that number one may be appointed as His Majesty's Chief Inspector of Constabulary for Scotland.

(2) So much of the said section sixty-five as requires a report upon the matters therein mentioned to be made by the inspector appointed thereunder shall cease to have effect, and such report upon those matters as a Secretary of State may direct shall be made to him annually, and copies thereof shall be laid before Parliament.

Expenditure.

3. Any additional expenditure incurred by reason of the provisions of this Act shall be defrayed out of moneys provided by Parliament.

Short title.

4. This Act may be cited as the Police (His Majesty's Inspectors of Constabulary) Act, 1945.

CHAPTER 12.

Northern Ireland (Miscellaneous Provisions) Act, 1945.

ARRANGEMENT OF SECTIONS.

Section.

1. Legislative power of Parliament of Northern Ireland as to certain matters relating to criminal law and procedure.
2. Transfer of functions of departments of Government of Northern Ireland and Ministers of Northern Ireland.
3. Use of facsimile impressions of obverse of Great Seal of Northern Ireland.
4. Power of English trustees to invest in Northern Ireland Government stock at a premium and in stock guaranteed by that Government.
5. Power of Scottish trustees to invest in Northern Ireland Government stock and stock guaranteed by that Government.
6. Power of Northern Irish trustees to invest in Northern Ireland Government stock.

Section.

7. Investment of funds of savings banks in Northern Ireland Government securities and securities guaranteed by that Government.
8. Winding-up of lunacy fund.
9. Provisions as to charges on registered land.
10. Amendments of Crown Lands Acts.
11. Amendment of Compensation (Defence) Act, 1939.
12. Short title and repeal.

SCHEDULE :

Enactments repealed.

An Act to make miscellaneous amendments in the law applicable to Northern Ireland and, as respects securities issued or guaranteed by the Government of Northern Ireland, to amend certain enactments relating to trustees and savings banks.

[7th March 1945.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) The restrictions imposed by the Government of Ireland Act, 1920, on the power of the Parliament of Northern Ireland to make laws shall not be construed as precluding that Parliament from enacting, in relation to Northern Ireland, by a law relating to criminal justice or criminal procedure a provision affecting an offence which is, or is connected with, an excepted or reserved matter :

Provided that nothing in this subsection shall operate so as to enable the Parliament of Northern Ireland to enact a law affecting the punishment for an offence which is, or is connected with, an excepted or reserved matter, otherwise than by providing for the imposition, generally or in any circumstances, of the same punishment as that which, at the time when that law is enacted, must or may be imposed in England, generally or in those circumstances, as the case may be, for that offence.

(2) In this section the expression "excepted or reserved matter" means a matter in respect of which, apart from this section, the Parliament of Northern Ireland has not, under the Government of Ireland Act, 1920, power to make laws.

Legislative power of Parliament of Northern Ireland as to certain matters relating to criminal law and procedure.
10 & 11 Geo. 5.
c. 67.

Transfer of functions of departments of Government of Northern Ireland and Ministers of Northern Ireland.

2.—(1) If it appears to the Governor of Northern Ireland that, in consequence of functions having been transferred by or under an Act of the Parliament of Northern Ireland from a department of the Government of Northern Ireland or a Minister of Northern Ireland to another such department or Minister, it is expedient that functions conferred on the first-mentioned department or Minister by or under an Act of the Parliament of the United Kingdom, whether passed before or after the passing of this Act (being functions that cannot be transferred by or under an Act of the Parliament of Northern Ireland), should be transferred to the last-mentioned department or Minister, he may, by Order in Council made with the consent of the Secretary of State, provide for the transfer of the functions so conferred accordingly.

(2) Any such Order in Council may contain such consequential, incidental and supplemental provisions as appear to the Governor of Northern Ireland to be necessary or expedient for the purposes of the Order (including provisions amending any Act of the Parliament of the United Kingdom, whether passed before or after the passing of this Act, or instrument issued under any such Act), and may be varied or revoked by a subsequent Order of the Governor of Northern Ireland in Council made with the consent of the Secretary of State.

(3) In this section the expression "functions" includes jurisdiction, powers and duties.

Use of facsimile impressions of obverse of Great Seal of Northern Ireland.

3.—(1) The Governor of Northern Ireland may from time to time cause to be provided a die, of such size as he may direct, having the same device as the obverse of the Great Seal of Northern Ireland, and a die so provided shall be in his custody.

(2) An impression embossed by means of the die so provided on, or on a wafer or other material attached to, a document of any such class required to be or usually authenticated by, or passed under, the Great Seal of Northern Ireland as is, at the time of the issue of the document, designated for the purposes of this subsection by the Governor of Northern Ireland, shall confer on the document the same validity in all respects as if it had been authenticated by, or passed under, the Great Seal of Northern Ireland.

Power of English trustees to invest in Northern Ireland Government stock at a premium and

4.—(1) The proviso to subsection (1) of section two of the Trustee Act, 1925 (which restricts the power of a trustee holding upon a trust the execution of which is governed by the law in force in England to purchase at a premium, amongst other stocks, stock referred to in paragraph (g) of subsection (1) of section one of that Act, that is to say, stock issued in respect of any loan raised by the Government of Northern Ireland, if the stock is liable to

be redeemed at par or at some other fixed rate), shall have effect with the omission of the words " and (g) ".

in stock guaranteed by that Government.
15 & 16 Geo. 5.
c. 19.

(2) Paragraph (e) of subsection (1) of section one of the said Act (which includes, amongst the stocks and securities in which any such trustee as aforesaid may invest trust funds in his hands, securities the interest of which is for the time being guaranteed by Parliament) shall have effect as if the reference to Parliament included a reference to the Parliament of Northern Ireland.

5. Section ten of the Trusts (Scotland) Act, 1921, shall have effect as if there were included in the stocks or securities in the purchase of which trust funds are authorised by the said section to be invested—

Power of
Scottish
trustees
to invest in
Northern
Ireland
Government
stock and stock
guaranteed
by that
Government.
11 & 12 Geo. 5.
c. 58.

(a) any stock or securities issued in respect of any loan raised by the Government of Northern Ireland; and

(b) any securities the interest of which is or shall be guaranteed by the Parliament of Northern Ireland.

6.—(1) There shall be included amongst the securities in which a trustee holding upon a trust the execution of which is governed by the law in force in Northern Ireland may, under the powers of the Trustee Act, 1893, invest any trust funds in his hands, stock or securities issued in respect of any loan raised by the Government of Northern Ireland.

Power of
Northern
Irish trustees
to invest in
Northern
Ireland
Government
stock.

(2) The preceding subsection shall, for the purposes of section six of the Government of Ireland Act, 1920, be deemed to be a provision of an Act passed before the appointed day within the meaning of that section.

56 & 57 Vict.
c. 53.

7.—(1) Paragraph (b) of subsection (1) of section one of the Trustee Savings Banks (Special Investments) Act, 1934 (which includes, amongst the securities in which the National Debt Commissioners may authorise moneys received by the trustees of a trustee savings bank to be invested, securities the principal and interest whereof are charged on the Consolidated Fund whether directly or by virtue of any guarantee, being securities which will mature for payment not later than thirty years after the date of the investment), shall have effect as if the reference therein to the Consolidated Fund included a reference to the Consolidated Fund of Northern Ireland.

Investment of
funds of
savings banks
in Northern
Ireland
Government
securities and
securities
guaranteed by
that
Government.
24 & 25 Geo. 5.
c. 37.

(2) There shall be included amongst the securities in which the National Debt Commissioners may invest in pursuance of section nine of the Post Office Savings Bank Act, 1861, section three of the Savings Bank Investment Act, 1863, and section

24 & 25 Vict.
c. 14.
26 & 27 Vict.
c. 25.

26 & 27 Vict.
c. 87. nineteen of the Trustee Savings Banks Act, 1863, any securities the interest of which is for the time being guaranteed by the Parliament of Northern Ireland.

(3) This section shall extend to the Isle of Man and the Channel Islands.

Winding-up
of lunacy
fund. 8.—(1) As soon as may be after the passing of this Act, the lunacy fund in Northern Ireland shall be wound up and the assets thereof transferred to the Exchequer of Northern Ireland.

34 & 35 Vict.
c. 22. (2) All fees and percentages under the Lunacy Regulation (Ireland) Act, 1871, shall, in accordance with directions given by the Treasury, be paid into the Exchequer of the United Kingdom, and the power of the Lord Chief Justice of Northern Ireland intrusted as aforesaid under section one hundred and seventeen of that Act to direct that any expenses incident to the lunacy office in Northern Ireland be paid out of the fees of that office shall cease.

(3) The power of the Lord Chief Justice of Northern Ireland intrusted as aforesaid under section one hundred and twelve of the Lunacy Regulation (Ireland) Act, 1871, to fix fees and rates of percentage—

(a) shall be exercised subject to the concurrence of the Treasury ;

(b) shall, as respects rates of percentage, extend to the fixing thereof (with or without overriding limits as respects the amounts to be payable by any estate) without regard to the rates and limits specified in section one hundred and nine of that Act ;

(c) shall, as respects fees, extend to the fixing of fees exceeding the scale in force at the date of the passing of that Act.

(4) There may be paid to the registrar and to the officers and clerks employed in the lunacy office in Northern Ireland such salaries and travelling and other allowances as the Lord Chief Justice of Northern Ireland intrusted as aforesaid may, with the concurrence of the Treasury, determine.

(5) There may be paid to the medical visitors, the legal visitors and the solicitor for minors and persons of unsound mind such remuneration and travelling and other allowances upon such conditions as may from time to time be specified by general order made, with the concurrence of the Treasury, by the Lord Chief Justice of Northern Ireland intrusted as aforesaid, and costs and expenses incurred by any of them in such proceedings instituted pursuant to the provisions of the Lunacy Regulation (Ireland) Act, 1871, and on such scale as may be so specified.

(6) There shall be defrayed out of moneys provided by the Parliament of the United Kingdom—

- (a) all such salaries, allowances, remuneration, costs and expenses as are mentioned in the two last preceding subsections; and
- (b) such other expenses incident to the lunacy office in Northern Ireland as the Lord Chief Justice of Northern Ireland intrusted as aforesaid may, with the concurrence of the Treasury, direct to be so defrayed.

(7) The power of the Lord Chief Justice of Northern Ireland intrusted as aforesaid under section one hundred and fifteen of the Lunacy Regulation (Ireland) Act, 1871, by special order to order the payment of a superannuation allowance to any registrar, officer or clerk who shall have served for twenty years in the lunacy office in Northern Ireland shall cease.

(8) Nothing in this section shall affect the power of the Lord Chief Justice of Northern Ireland intrusted as aforesaid under section one hundred and seventeen of the Lunacy Regulation (Ireland) Act, 1871, to direct that any such remuneration or expenditure as is mentioned in that section shall be borne by a particular estate.

(9) References in this section to the registrar, the medical visitors, the legal visitors and the solicitor for minors and persons of unsound mind are references respectively to the registrar, the medical visitors, the legal visitors and the solicitor for minors and persons of unsound mind referred to in the Lunacy Regulation (Ireland) Act, 1871, and in this section the expression "the Lord Chief Justice of Northern Ireland intrusted as aforesaid" has the same meaning as it has for the purposes of that Act.

9.—(1) Where a person is registered (whether before or after the passing of this Act) under the Local Registration of Title (Ireland) Act, 1891, as the owner of a charge on land for the payment of any principal sum of money with or without interest, the following provisions shall have effect:—

Provisions as to charges on registered land.
54 & 55 Vict.
c. 66.

- (a) when payment of the principal sum charged has become due, the registered owner of the charge or his personal representative may apply to the Court in a summary manner for possession of the land or any part thereof, and on the application the Court may, if it thinks proper so to do, order possession of the land or that part thereof to be delivered to the applicant, and the applicant, upon

obtaining possession of the land or that part thereof, as the case may be, shall be deemed to be a mortgagee in possession ;

- (b) upon the registration, under subsection (6) of section forty of the said Act, as owner of the land, of the transferee from the registered owner of the charge, the charge and all estates, interests, burdens and entries inferior thereto shall be discharged :

Provided that nothing in paragraph (b) of this subsection shall operate so as to discharge any entry on the register relating to a right conferred or defined by regulations under section four of the Turbary (Ireland) Act, 1891, or under section twenty-one of the Irish Land Act, 1903, as extended by section twenty-six of the Northern Ireland Land Act, 1925 (which relate to turbary).

54 & 55 Vict.
c. 45.
3 Edw. 7. c. 37.
15 & 16 Geo. 5.
c. 34.

- (2) The provisions of this section shall be in addition to, and not in derogation of, the provisions of section forty of the Local Registration of Title (Ireland) Act, 1891.

- (3) This section shall be construed as one with the Local Registration of Title (Ireland) Act, 1891.

Amendments
of Crown
Lands Acts.
10 Geo. 4. c. 50.

10. The following enactments, namely :—

section seventy of the Crown Lands Act, 1829 (which requires the transmission to, and preservation in, the Office of Record in Ireland in which the original rentals or rent rolls of the King's rents shall be preserved, of duplicates of such conveyances, leases, grants, deeds and instruments as are mentioned in that section) ;

section eighty-eight of that Act (which requires every person appointed in Ireland to be a receiver of the issues, revenues and profits of the possessions and land revenues of the Crown to return yearly into the Office of Public Records in Ireland wherein the two-penny books of the collection of Crown rents theretofore returned pursuant to the Act of the Parliament of Ireland mentioned in that section are or shall be deposited, the books in which he enters the receipts or acquittances given by him for rents, and the preservation of those books in that Office) ;

section ninety-four of that Act (which, in the case of the award on a submission to arbitration of any such dispute, doubt or difference as is mentioned in that section touching or concerning land in Ireland, requires the enrolment of the award in the Office of Record in Ireland referred to in the said section seventy) ; and

section twelve of the Crown Lands Act, 1894 (which, amongst other things, requires the deposit in the Public Record Office in Dublin of a duplicate of any order or instrument apportioning any rent under section sixty-eight of the Landed Estates Court (Ireland) Act, 1858) ;

21 & 22 Vict.
c. 72.

shall have effect with the substitution for references in those enactments to the said Office of Record, the said Office of Public Records and the Public Record Office in Dublin respectively of references to the Public Record Office of Northern Ireland.

11. The Compensation (Defence) Act, 1939, shall have effect as if the following subsection were added at the end of section eighteen thereof :—

Amendment of
Compensation
(Defence)
Act, 1939.

“(4) Sections seven and nine of this Act shall have effect, in their application to proceedings in Northern Ireland before a tribunal constituted under this Act, as if for references to the Lord Chancellor and to the High Court there were respectively substituted references to the Lord Chief Justice of Northern Ireland and to the High Court of Justice in Northern Ireland ”.

2 & 3 Geo. 5.
c. 75.

12.—(1) This Act may be cited as the Northern Ireland (Miscellaneous Provisions) Act, 1945.

Short title
and repeal.

(2) The enactments set out in the first and second columns of Part I of the Schedule to this Act are hereby repealed to the extent specified in the third column of that Part of that Schedule as from the passing of this Act, and the enactment set out in the first and second columns of Part II of the Schedule to this Act is hereby repealed to the extent specified in the third column of that Part of that Schedule as from the coming into force of the order first made under section one hundred and twelve of the Lunacy Regulation (Ireland) Act, 1871, fixing rates of percentage which provides for payment of percentages without overriding limits as respects the amounts to be payable by any estate or subject to overriding limits as respects those amounts differing from the limits specified in section one hundred and nine of that Act.

SCHEDULE.

ENACTMENTS REPEALED.

PART I.

Section 12

ENACTMENTS REPEALED AS FROM THE PASSING OF THIS ACT.

Session and Chapter.	Short Title.	Extent of Repeal.
34 & 35 Vict. c. 22.	The Lunacy Regulation (Ireland) Act, 1871.	In section two, in the definition of "the Bank of Ireland", the words "save such as regard the lodgment of moneys to the credit of the lunacy fund herein-after mentioned". In section one hundred and ten, the words "and the separate credit of the lunacy fund". In section one hundred and twelve, the words "but not to rates higher than those respectively herein-before prescribed" and the words from "provided always" to the end of the section. Sections one hundred and fifteen and one hundred and sixteen. In section one hundred and seventeen, the words from "any expenses incident" to "the lunacy office, and also that".
1 Edw. 7. c. 17	The Lunacy (Ireland) Act, 1901.	In section four, the words "and one hundred and fifteen".
10 & 11 Geo. 5. c. 67.	The Government of Ireland Act, 1920.	Section thirty-three.
15 & 16 Geo. 5. c. 19.	The Trustee Act, 1925.	In the proviso to subsection (1) of section two, the words "and (g)".

PART II.

ENACTMENT REPEALED AS FROM COMING INTO OPERATION OF ORDER FIRST MADE UNDER S. 112 OF LUNACY REGULATION (IRELAND) ACT, 1871, FIXING RATES OF PERCENTAGE WHICH PROVIDES FOR PAYMENT OF PERCENTAGES WITHOUT OVERRIDING LIMITS AS RESPECTS AMOUNTS PAYABLE OR SUBJECT TO OVERRIDING LIMITS DIFFERING FROM THOSE MENTIONED IN S. 109 OF THAT ACT.

Session and Chapter.	Short Title.	Extent of Repeal.
34 & 35 Vict. c. 22.	The Lunacy Regulation (Ireland) Act, 1871.	In section one hundred and nine, the words from "according to the several rates following" to "one hundred and fifty pounds".

CHAPTER 13.

An Act to apply certain sums out of the Consolidated Fund to the service of the years ending on the thirty-first day of March, one thousand nine hundred and forty-five and one thousand nine hundred and forty-six.
[28th March 1945.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sums hereinafter mentioned; and do therefore most humbly beseech Your Majesty that it may be enacted, and be it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1. The Treasury may issue out of the Consolidated Fund of the United Kingdom and apply towards making good the supply granted to His Majesty for the service of the year ending on the thirty-first day of March, one thousand nine hundred and forty-five, the sum of eight million, nine hundred and thirty thousand, seven hundred and forty-three pounds.

Issue of
£8,930,743
out of the Con-
solidated Fund
for the service
of the year ending
31st March, 1945.